UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION

Interconnection of Large Loads to the Interstate Transmission System	Docket No. RM26-4-000

PACIFIC GAS AND ELECTRIC COMPANY'S OPENING COMMENTS ON PROPOSED ADVANCE NOTICE OF PROPOSED RULEMAKING

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Pacific Gas and Electric Company (PG&E) respectfully submits these comments in response to the Federal Energy Regulatory Commission's (Commission) *Notice Inviting Comments* issued in this proceeding on October 27, 2025.

PG&E recognizes the critical importance of expeditiously addressing issues related to large loads, including data centers, interconnecting into the electrical transmission system and appreciates the initiative of Department of Energy ("DOE") Secretary Wright requesting that the Commission consider a proposed Advanced Notice of Proposed Rulemaking ("ANOPR") to address large load interconnection issues. As Secretary Wright explained, adopting efficient, timely, and non-discriminatory large load interconnection rules is essential to facilitating the growth of data centers and other large load customers and spurring growth in the American economy.

For more than a year now, PG&E has been undertaking similar efforts in California to develop a streamlined, transparent, and equitable approach for interconnecting large load customers to PG&E's extensive electric transmission system located throughout Northern and Central California. In 2024, PG&E proactively initiated discussions with multiple stakeholders to develop solutions, launched a first of its kind cluster study process to study transmission system impacts from large load interconnections and to develop cost-effective solutions, and proposed a new electric rule—referred to as “Electric Rule 30”—to the California Public Utilities Commission (“CPUC”) to interconnect new large load customers. PG&E’s goal in drafting Electric Rule 30 was to develop a timely, cost-effective interconnection process that equitably balanced the interests of large load customers and existing ratepayers.

Based on our experience to date with Electric Rule 30 and large load interconnections, PG&E believes that three key principles are essential to any final Commission rule:

- Protecting existing ratepayers from incurring additional or stranded costs while also adopting fair and equitable cost responsibility and allocation approaches for large load customers;
- Appropriately balancing state and Commission jurisdiction and developing a complimentary and cooperative framework, while also ensuring timely state action on large load issues; and
- Developing clear rules that will expedite large load interconnections by allowing flexibility rather than imposing additional requirements that slow the interconnection process.

In these opening comments, PG&E provides:

(1) an overview of Electric Rule 30, including how PG&E is addressing jurisdictional issues;

(2) an overview of its 2024 and 2025 cluster study process;

(3) comments on the fourteen principles identified by Secretary Wright for the ANOPR; and

(4) a discussion regarding the importance of timely state action and grandfathering.

PG&E looks forward to actively working with the DOE, Commission, and stakeholders to develop fair, equitable, and balanced rules that will help facilitate the interconnection of large load customers in California and throughout the United States.

I. OVERVIEW OF PG&E'S ELECTRIC RULE 30 INCLUDING JURISDICTIONAL ISSUES

A. Overview of Electric Rule 30

PG&E has interconnected new retail electric customers to its electrical system for decades. The vast majority of these customers were connected to the electric distribution system and had loads less than one megawatt ("MW"), although some customers did have larger loads and connected into the transmission system. In 2023, however, PG&E experienced a significant increase in applications for transmission-level interconnections. This trend accelerated in 2024. By the end of 2024, the megawatts of large load customers requesting transmission-level interconnections exceeded existing transmission-level customers' megawatts by 4,000%. While many of the 2023-2024 applications were for data centers, other customers such as manufacturing, electric vehicle charging, and government/university customers are also requesting transmission-level interconnections. PG&E expects that this trend will continue over the coming years.

In order to provide a clear, transparent, and uniform set of rules for large load customer interconnections, PG&E proactively organized an internal team to develop a new electric rule and associated form agreement for transmission-level large load customers. PG&E also initiated stakeholder outreach to seek feedback and input from the CPUC's Energy Division, ratepayer advocates groups, other utilities, and potential large load customers. Based on its internal process and feedback from stakeholders, PG&E developed Electric Rule 30.

In November 2024, PG&E filed an application at the CPUC for approval of Electric Rule 30.[1] Since that time, parties in the proceeding have conducted extensive discovery, submitted prepared testimony, and participated in three days of hearings.

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[1] Electric Rule 30 was submitted in Application 24-11-007 at the CPUC. Information regarding the proceeding, including filings, orders and other materials is available at: Proceeding Details.

Parties are now completing post-hearing briefing with final reply briefs due November 24, 2025. The CPUC is expected to issue a final decision in the first quarter of 2026.

Proposed Electric Rule 30 concerns the interconnection of retail electric customers at voltages of 50 kilovolts ("kV") and above (*i.e.*, transmission level). Key provisions in Electric Rule 30 address:

- Design, construction, location, and ownership of the facilities necessary to interconnect a new large load customer;
- Customer requests for facilities above and beyond PG&E standards (*e.g.*, redundant lines or certain kinds of equipment) referred to as "Special Facilities" and the associated cost responsibility for Special Facilities;
- Installation and metering requirements for new large load customers;
- Advances, contributions, and actual cost payments by large load customers for new interconnection facilities, as well as refunds for these amounts; and,
- The option for a large load customer to build its own facilities and transfer ownership to PG&E.

Electric Rule 30 includes engineering, construction, and cost responsibility requirements for new transmission-level large load customers interconnecting to PG&E's transmission system. Electric Rule 30 does <u>not</u> address: (1) electric supply (*i.e.*, generation) costs; (2) retail rates once service commences; (3) other utility programs such as energy efficiency or demand response; and (4) post-energization operational requirements.

At a high level, Electric Rule 30 requires large load customers to upfront fund interconnection facilities (*e.g.*, direct connection lines, substations/switchyards, etc.). Once the large load customer's facility is energized and the customer is producing revenues for the electric system, the customer is eligible for a refund of some or all of its upfront funding based on the revenues it is producing. When revenues from large load customers exceed the incremental interconnection costs, they offset costs paid by existing ratepayers. PG&E expects that existing ratepayers can see bill reductions as a result of large load customer interconnections and the corresponding revenues produced by these customers. PG&E has estimated that in certain scenarios, existing ratepayers could potentially receive up to $3,000 in bill savings over a 10-year period of time if a substantial number of large load customers interconnect to the transmission system.

Electric Rule 30 does not require large load customers to prefund upgrades to the existing transmission network although, as described below, customers can provide pre-funding loans to accelerate this work. Absent a pre-funding loan from the customer to accelerate work, transmission upgrade costs are paid by PG&E and included in rates for all transmission customers. Courts and the Commission have routinely held that the integrated transmission network benefits all customers connected to the network and thus costs, including upgrade costs, should be allocated to all customers.[2] Moreover, many upgrades serve multiple purposes, such as providing capacity for multiple new customers and facilitating electrification and load growth. Thus, under Electric Rule 30, the costs for transmission network upgrades are included in transmission rates paid by all customers, including large load customers. Based on PG&E's analysis, even when the transmission network upgrade costs are factored in, PG&E still expects existing ratepayers will see bill reductions as a result of large load interconnections.

PG&E's Electric Rule 30 proposal also includes safeguards and protections to mitigate potential detrimental impacts to existing ratepayers from large load interconnections. For example, PG&E has proposed a 10-year minimum demand charge[3], a 15-year contract term, and early termination fees if a large load customer shuts

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[2] *Paragould Light & Water v. FERC*, 144 F.4th 287, 294 (4th Cir. 2025); *Duke Energy Progress, LLC v. FERC*, 106 F.4th 1145, 1155 (D.C. Cir. 2024); *Municipal Energy Agency of Nebraska, et al. v. Public Service Company of Colorado*, 189 FERC ¶ 61,099 (2024), *r'hrg denied*, 190 FERC ¶ 61,158 (2025); *see also Public Service Company of Colorado*, 62 FERC ¶ 61,013 (1993).

[3] Under Electric Rule 30, minimum demand charges start in the fifth year after energization, which gives the customer an opportunity to ramp up its facility to full load, and then continue for a ten-year period until the fifteenth year after energization.

down its facility during the contract term. In addition, PG&E has a rigorous interconnection process that requires the large load customer to provide upfront funding at each step in the process. This process helps avoid speculative load interconnection requests and prevents PG&E from incurring stranded costs if a large load customer decides not to proceed.

Finally, Electric Rule 30 addresses important "speed to market" issues. By establishing a uniform tariff and standard form agreement, Electric Rule 30 removes the regulatory delays caused by one-off contract negotiations and subsequent review by the CPUC. Previously, the time required for contract negotiations and regulatory approval was well over a year. Electric Rule 30 can reduce that time to weeks or a few months at most. Electric Rule 30 also includes provisions that will facilitate large load facility speed to market. For example, Electric Rule 30 allows for as pre-funding loans to accelerate upgrades to the existing transmission system and provisions which allow a customer to contribute land or equipment which can reduce the amount of time needed to acquire land or supply cycles for equipment purchases.

B. Jurisdictional Considerations for Electric Rule 30

Jurisdiction is one of the issues that has come up in the Electric Rule 30 proceeding and has been raised in the ANOPR.[4] As PG&E has explained in the Electric Rule 30 proceeding, the CPUC has jurisdiction over PG&E's provision of retail electric service, including retail electric service to distribution-level and transmission-level customers. As a matter of California state law, a utility such as PG&E must provide service to new retail electric customers upon request.[5] Under PG&E's Commission-

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[4] ANOPR at PP 2, 13-16.

[5] Cal. Pub. Util. Code, § 451 ("Every public utility shall furnish and maintain such adequate, efficient, just, and reasonable service, instrumentalities, equipment, and facilities . . . as are necessary to promote the safety, health, comfort, and convenience of its patrons, employees, and the public."); *see also Lukrawka v. Spring Va. Water Co.*, 169 Cal. 318, 332 (1915). The provision of retail service is different than setting the rates and cost allocation for transmission-level facilities.

approved Transmission Owner ("TO") Tariff, the CPUC also has jurisdiction over a retail customer's interconnection request.[6] Section 8.1 of PG&E's TO Tariff provides:

> **8.1 Participating TO Obligation to Interconnect**
>
> The Participating TO shall, at the request of a third party pursuant to Section 10, interconnect its system to the wholesale generation or wholesale load of such third party, or modify an existing wholesale Interconnection. Interconnections under this TO Tariff shall be available to entities eligible to request Interconnection consistent with the provisions of Section 210(a) of the FPA. Interconnections requested by entities or individuals that are not so eligible shall be governed by the Local Regulatory Authority. The procedures for Interconnections of wholesale generation to the ISO Controlled Grid shall be governed by the ISO Tariff.

PG&E understands that retail electric customers are not eligible "entities or individuals" under this provision and thus interconnection requests by these customers are governed by the "Local Regulatory Authority" (*i.e.*, the CPUC).

However, the CPUC does not have jurisdiction over cost allocation, rates, or cost recovery for all of the interconnection facilities affected by Electric Rule 30. The appropriate cost recovery jurisdiction for electric transmission facilities is determined based on whether the transmission facilities: (1) are under the California Independent System Operator Corporation's ("CAISO") operational control; and (2) have any degree of integration into the transmission network.[7] To the extent transmission facilities are not under the CAISO's operational control and/or are not integrated into the transmission network, cost allocation, rates, and cost recovery for those facilities is subject to the CPUC's jurisdiction. To the extent transmission facilities are under the CAISO's

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[6] As explained below, jurisdiction over a request for an interconnection of a retail customer's facility is not the same as jurisdiction over rates, cost allocation, and cost recovery for network transmission facilities.

[7] *See, e.g.*, *Pacific Gas and Electric Company*, 108 FERC ¶ 61,297 (2004) ; *see also Department of Water Resources v. FERC*, 489 F.3d 1029 (9th Cir. 2007); *see also* PG&E's Transmission Owner Tariff § 1 (TO tariff addresses "revenue requirements and applicable rates and charges for transmission access and transmission reliability services over the ISO Controlled Grid…").

operational control and are a part of the integrated transmission network, cost allocation, rates, and cost recovery are Commission-jurisdictional.

II. OVERVIEW OF PG&E'S CLUSTER STUDIES

In 2024, recognizing the significant growth in large load interconnection requests, PG&E initiated a pilot cluster study process to evaluate new interconnection requests as a groups rather than the traditional serial study process. The 2024 cluster study focused on new transmission level retail electric customers located in Alameda and Santa Clara counties, California. The cluster process utilizes a streamlined approach to identify: (1) upgrades needed to serve potential new transmission level retail electric customers; and (2) opportunities for these potential new customers to share costs for new facilities that could be used by multiple customers. PG&E believes that a cluster group study will help drive meaningful results that consider system capability and develop solutions to meet customer timelines and establish shared cost responsibility. This streamlined cluster approach will also support developing a consolidated engineering and implementation plan. The 2024 cluster study was successful and PG&E has continued to work with participants on engineering, design and interconnection agreements. PG&E initiated a second cluster study in 2025 which is still ongoing.

III. PG&E'S COMMENTS ON THE FOURTEEN PRINCIPLES IDENTIFIED BY SECRETARY WRIGHT AND TIMELINE/GRANDFATHERING ISSUES

A. ANOPR Principles

The ANOPR proposal includes fourteen principles. PG&E addresses each of these principles below.

1. Jurisdiction

The ANOPR proposes that any Commission rules be limited to interconnection directly to transmission facilities, consistent with the Commission's seven factor test.[8]

[8] ANOPR at P 18.

PG&E agrees that this limitation is appropriate, but there may be additional limitations to the Commission's jurisdiction that should be reflected in any final rule. For example, the Commission recently rejected a tariff proposed by the Tri-State Generation and Transmission Association ("Tri-State") because the proposal implicated the terms and conditions of retail electric service.[9] As the Commission explained, the Federal Power Act ("FPA") delegates to "states alone, the regulation of 'any other sale'—most notably, any retail sale—of electricity. Section 201 of the FPA also provides that the Commission's jurisdiction is limited to 'those matters which are not subject to regulation by the states.'"[10] The Commission went on to explain that the Supreme Court has:

> clarified that because the FPA limits the Commission's jurisdiction to wholesale sales, reserving regulatory authority over retail sales to the states alone, a regulation that 'specifies terms of sale at retail' would exceed the Commission's authority under the FPA.[11]

Thus, in developing any final rule, the Commission should consider FPA limitations on retail electric sales issues as well as matters that are subject to state jurisdiction.

In addition, with regard to co-location issues, any final rule should be consistent with the Commission's determination earlier this year "the states get to determine which entities are legally permitted to provide electricity to retail customers in co-location arrangements. The states also get to determine how the wholesale costs of providing electricity to those retail customers are recovered through retail rates. That is true irrespective of where the load interconnects (i.e., to the distribution system, the transmission system, or the generator itself)."[12] The Commission also noted that states "have authority over their generation resource mix, including through their siting authority. This means that which generating resources are sited and allowed to operate to

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[9] *Tri-State*, 193 FERC ¶ 61,070 (2025) at P 49 ("*Tri-State*").

[10] *Tri-State* at P 46 (footnotes omitted).

[11] *Tri-State* at P 47 (footnotes omitted).

[12] *PJM Interconnection, et al.*, 190 FERC ¶ 61,115 (2025) ("*PJM*") at P 69.

serve co-located load is also a question of state law."[13] Finally, the Commission explained:

> the Commission has exclusive authority over the rates, terms, and conditions for the sales from generating resources used to serve co-located loads, as well as the practices directly affecting such sales, *provided* that they are sales for resale in interstate commerce. If they are not sales for resale—that is, if they are made directly to the end-use consumer—or if they are not in interstate commerce then the co-located generator's sales are under state jurisdiction.[14]

In short, the Commission should be mindful that "the Commission and states each regulate within separate zones of exclusive jurisdiction, with the states retaining authority over those matters not expressly conveyed to the Commission under the FPA."[15]

2. Applicability

The ANOPR proposes that any final rule only apply to: (1) new loads; and (2) facilities over 20 MW.[16] PG&E agrees that any final rule should only apply to "new loads." To provide further clarification, the Commission should define "new loads" as customers that have not yet submitted an interconnection application to a utility or transmission provider as of the effective date of any Commission final rule issued in this proceeding.[17] As described above, PG&E is currently working with numerous potential large load customers who are at various stages in the interconnection process. These stages include preliminary engineering studies, more detailed engineering studies, execution of an interconnection agreement, detailed design work, and construction of new interconnection facilities. These large load customers are moving forward based on the current rules and requirements in effect. To change these rules mid-stream would

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[13] *PJM* at P 70 (footnotes omitted).

[14] *PJM* at P 71 (footnotes omitted).

[15] *PJM* at P 67.

[16] ANOPR at P 19.

[17] *See* Sections III.A.13 and III.C below (describing PG&E's implementation proposal).

create uncertainty and likely cause customers to pause the interconnection process as they evaluate the new rules and requirements. This would result in the exact opposite of what Secretary Wright emphasized, the need for expeditious action.

To avoid delays and the uncertainty of potential mid-stream changes, PG&E strongly recommends that the Commission make clear that a final rule will only apply to large load customers who have not yet submitted an interconnection application to a utility and/or transmission provider as of the date of the Commission issues a decision. PG&E's proposal for timing and grandfathering are addressed in more detail below in Sections III.B and C. Large load customers that submit an interconnection application after the final rules are effective and implemented will be well-aware of the Commission's requirements and can make and/or adjust their plans accordingly. The Commission should also clarify that the final rule does not apply to large load customers who are already receiving electrical service. There is no reason to apply prospective interconnection rules to customers who are already interconnected and receiving service.

As to the 20 MW limit, PG&E is not opposed to using 20 MW as a threshold to define large load for purposes of a new Commission rule.

3. Studying Load, Hybrid Facilities, and Generation Together

The ANOPR proposes that "to the extent practicable" load, hybrid facilities[18], and generating facilities should be studied together to promote efficient siting and to minimize network upgrade costs.[19] PG&E recommends that the Commission not mandate a single study approach but instead allow individual utilities and/or Regional Transmission Organizations and Independent System Operators ("RTO/ISO") to decide the most efficient way to coordinate planning. In many parts of the country, the existing generation interconnection process is already under severe strain. Interconnection queues have grown and studies are taking months or years to complete and then must often be updated. Adding into this mix load and hybrid facility interconnections may only exacerbate this problem. In some parts of the country, load and hybrid facility interconnection requests may be able to be seamlessly added to the generation interconnection process. In other parts of the country, adding this new requirement to an already overburdened process may be detrimental.

In California, after a retail electric large load customer submits an interconnection application, PG&E performs a preliminary engineering study that identifies necessary interconnection facilities and provides a preliminary cost estimate for interconnection. These preliminary engineering studies, as well as subsequent more detailed studies, are shared with the CAISO. The CAISO performs an annual Transmission Planning Process ("TPP") which takes into account information provided by PG&E, other utilities, California agencies such as the CPUC and California Energy Commission to develop an overall transmission development plan for the CAISO controlled grid. Thus, in California, load and generation information is already combined for purposes of developing a statewide transmission plan. The CAISO's current process works well.

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[18] The ANOPR defines a hybrid facility as a facility where load and a generation facility share an interconnection point. *See* ANOPR at P 12.

[19] ANOPR at P 20.

The Commission should avoid imposing a one-size-fits-all approach. To the extent an RTO/ISO and/or utility planning process already incorporates both generation and load forecasts, and is working well, the Commission should avoid establishing new requirements that may slow down or stall the existing approach.

4. Standard Deposits, Readiness Requirements, and Withdrawal Penalties

The ANOPR proposes standardized deposits, readiness requirements, and penalties for load and hybrid facilities.[20] PG&E supports this proposal as an effective way to address speculative projects and to provide transmission providers with useful information. PG&E's current interconnection process requires non-refundable deposits at various stages of the process and potential large load customers are required to provide information in order for studies to proceed. The Commission should allow some regional flexibility on the amount of the deposits, information needed for readiness requirements, and withdrawal penalties, but PG&E is generally supportive of including these types of provisions in a final rule.

5. Hybrid Facility Studies

The ANOPR proposes that hybrid facilities be studied based on the amount of injection and/or withdrawal rights required and provides an example of a 500 MW load and 600 MW generator that are co-located seeking no withdrawal rights and 100 MW of injection rights.[21] This aspect of the ANOPR is problematic and requires modification. This proposal does not account for the likely situation that for any given time period, a co-located generator may be off-line (requiring the load to solely utilize the transmission system) or a large load facility may be partially or completely off-line or using less energy than forecasted (resulting in the generator injecting more into the transmission

[20] ANOPR at P 21.

[21] ANOPR at P 22.

system). It is unrealistic to assume that a generator will always be operating or that load is always consistent. This is exactly why co-located facilities are generally connected to the transmission system, so that the generator and/or load can continue to receive service or inject power if the other facility is off-line.

Rather than requiring that studies be conducted on potentially unrealistic assumptions, the Commission should direct that hybrid facilities be studied under multiple potential scenarios so that the interconnection facilities can be designed and built to accommodate the inevitable circumstance of a generator or large load being partially or wholly off-line. All reasonable scenarios should be considered so that the transmission system is sufficiently robust to receive, for example, 600 MW of injection or provide 500 MW to serve the large load customer.

6. System Protection Requirements

The ANOPR asks for comments on whether hybrid facilities should be required to install system protections to prevent unauthorized injections/withdrawals that exceed their rights, what the technical requirements would be for these system protections, and whether hybrid facilities should be subject to penalties for unauthorized injections or withdrawals.[22] If a hybrid facility has agreed to injection and/or withdrawal limits, PG&E supports the installation of equipment that meets all technical standards that would limit the injections or withdrawals from the hybrid facility. To the extent such equipment is not available, PG&E supports financial penalties for a hybrid facility in circumstances where it exceeds its injection/withdrawal limit.

7. Expedited Studies for Curtailable and/or Dispatchable Facilities

The ANOPR proposes that large loads and hybrid facilities that agree to be curtailable and/or dispatchable are eligible for expedited interconnection studies.[23] In

[22] ANOPR at P 23.

[23] ANOPR at P 24.

general, PG&E strongly supports large loads and hybrid facilities agreeing to be curtailable and/or dispatchable. The ability to curtail and/or dispatch facilities provides important operational flexibility for the electrical grid and may allow a utility to avoid transmission infrastructure costs, which benefits existing ratepayers. However, the Commission should not adopt a blanket rule that large loads and hybrid facilities offering curtailment/dispatchability always receive expedited consideration. There may be situations where a utility or transmission provider has limited transmission planning resources and those resources are already fully committed to studying interconnections which were previously submitted and have been pending for some time. The Commission rule should provide that large load and hybrid facilities offering to be curtailable and/or dispatchable will be prioritized in the interconnection process, but these customers will not necessarily go to the "front of the line" or displace other customer projects that are well along in the interconnection process.

In addition, the Commission should avoid layering onto the existing generation interconnection process expedited studies for curtailable and/or dispatchable facilities. The generator interconnection process is already complex and adding in a new study process for curtailable and/or dispatchable facilities, even if it is expedited, may cause delays in an already lengthy process and impact projects already going through interconnection studies.

Finally, to the extent the Commission includes an expedited process in its final rule, it should be clear what it means to be "expedited" and should not impose unreasonable time frames that cannot be attained given current resource and personnel limitations at the utilities and/or RTOs/ISOs.

8. Cost Responsibility for Network Upgrades

The ANOPR proposes that load and hybrid facilities be responsible for 100% of the network upgrades they are assigned through the interconnection process, subject to a potential refund or crediting mechanism.[24] This aspect of the ANOPR requires both clarification and revision.

First, the ANOPR needs to be clarified as to what network upgrade costs are being referred to as "assigned through the interconnection process." A transmission provider or utility may already have been planning network upgrades to accommodate forecasted load growth or for reliability that also have the added benefit of providing capacity for a new large load or hybrid facility. In this case, the large load customer should not be responsible for 100% of the costs for network upgrades that were already planned. Similarly, network upgrades may be planned to serve a number of new large load and hybrid facilities, as well as forecasted load growth for other reasons such as organic load growth, electrification, and/or electric vehicles. In this case, the network upgrade costs should not be 100% assigned to a single large load or hybrid facility. To the extent the Commission adopts this aspect of the ANOPR, it will need to be very clear in its rule as to what "assigned in the interconnection process" means and will need to address the variety of scenarios that can arise related to network upgrades, such as those described above.

Second, any Commission rule will need to be clear as to what constitutes a "network upgrade." For example, is a network upgrade limited to upgrades to the existing transmission system or does it also include a new switchyard or substation needed to serve a large load or hybrid facility. In addition, are the lines connecting a new large load or hybrid facility "network upgrades." Any Commission rule will need to provide a clear definition of network upgrades so that utilities and transmission providers have a bright line to apply when determining cost responsibility.

Third, requiring a large load or hybrid facility to pay 100% of the network upgrade costs without any opportunity for refunds is contrary to judicial and Commission

[24] ANOPR at P 25.

precedent. As described above in Section I.A, there is well-established judicial and Commission precedent that all customers benefit from the integrated transmission network and thus upgrade costs should be borne by all customers.[25] Large load and hybrid customers should be eligible for refunds based on the electric retail revenues produced from these facilities. Unlike generators, which often do not pay retail electric rates and do not produce substantial revenues which can offset interconnection infrastructure costs, large load and hybrid facilities generally pay retail electric rates which, in part, offset the costs of the infrastructure needed for these facilities. Thus, it is appropriate for the purpose of refunds to treat large load and hybrid facilities differently than generators given the difference in revenues produced to pay infrastructure costs.

Finally, in any rule, the Commission should allow for regional variations. Each state has a unique retail electric rate structure which could influence the type and amount of refunds provided. For example, in Electric Rule 30, PG&E has proposed that large load customers upfront fund interconnection facilities but, once the customer is energized, it would be eligible for refunds based on the revenues it produces. PG&E's Electric Rule 30 also includes additional safeguards for existing customers if a large load does not materialize, such as minimum demand charges, a minimum contract term, and early termination fees. These Electric Rule 30 provisions strike a careful balance between protecting existing customers and recognizing the revenues produced by large load customers. PG&E's proposal works, in part, because of the unique rate structures and rate design in California. The Commission should avoid a one-size-fits-all approach to cost responsibility and refunds especially given the unique rate structures and designs

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[25] *Paragould Light & Water v. FERC*, 144 F.4th 287, 294 (4th Cir. 2025); *Duke Energy Progress, LLC v. FERC*, 106 F.4th 1145, 1155 (D.C. Cir. 2024); *Municipal Energy Agency of Nebraska, et al. v. Public Service Company of Colorado*, 189 FERC ¶ 61,099 (2024) ("*Municipal Energy Agency of Nebraska*"), *r'hrg denied*, 190 FERC ¶ 61,158 (2025); *see also Public Service Company of Colorado*, 62 FERC ¶ 61,013 (1993).

in each state. Instead, the Commission should allow utilities and/or states to develop a cost responsibility and refund proposal that is right for that utility and/or state.

9. Customer Option to Build

The ANOPR proposes that an interconnection customer be afforded the same option to build as offered to generators.[26] PG&E generally supports an interconnection customer's option to build, but there are several important clarifications that need to be made to this proposal.

First, the Commission needs to clearly state which facilities an interconnection customer can build. For example, an interconnection customer should not be able to perform upgrades to a utility's existing infrastructure (*e.g.*, reconductoring a transmission line for more capacity, adding a transformer bank to existing substation, etc.). Moreover, an interconnection customer should not be able to connect into the existing utility transmission system if doing so could create reliability or safety issues.

Second, the Commission should be clear that ownership of the customer constructed facilities must be transferred to the utility after the facilities are completed and before energization. Customer built electric facilities will become a part of the integrated transmission system and thus should be owned and maintained by the utility and, where applicable, operated by the RTO/ISO. If the customer retains ownership, it may not maintain the facilities in a prudent or safe manner which could have cascading impacts on the entire transmission system. Moreover, the facilities constructed by a customer may be used by other customers. For example, if a customer built a two bay substation, but only needed one bay, the remainder of the substation could be used to serve other customers. Or, even if the customer used both bays, if the substation could be expanded to serve other customers, the substation should be owned by the utility so it could perform the expansion and maintain compliance requirements for asset reliability,

[26] ANOPR at P 26.

operations and management. The Commission risks creating a balkanized electric transmission system if bits and parts of it are owned by large load customers. Moreover, the electric transmission system could also be inefficiently planned if, for example, a customer owned a substation and then refused to expand it to serve another nearby large load customer. In short, the Commission rules should require that ownership of all customer built facilities be transferred to the utility prior to energization so that these facilities can be operated and maintained as a part of the transmission network.

The requirement that the utility ultimately own facilities constructed by a customer is consistent with well-established Commission precedent. In Order No. 2003-A, the Commission noted that "[w]e agree with NYTO that requiring the Transmission Provider to cede ownership of Stand-Alone Network Upgrades and the Transmission Provider's Interconnection Facilities to the Interconnection Customer is inconsistent with existing Commission precedent."[27] While Order No. 2003-A allowed a utility and customer to ***voluntarily*** agree that the customer would own certain facilities, customer-ownership is not required. Rather, for operational and reliability reasons, Order No. 2003-A makes clear that utility-ownership is the preferred option.

Third, the Commission should include in its final rule cost containment provisions for customer built facilities to avoid the construction of facilities that are excessively expensive.

Fourth, consistent with Commission precedent, the Commission should require interconnection customers to allow utilities to review any engineering designs to ensure uniformity with the utility's existing standards and to monitor construction to ensure that the facilities to be transferred to the utility are built to the appropriate specifications to

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[27] *Standardized Generator Interconnection Agreements and Procedures,* Order No. 2003-A, 106 FERC ¶ 61,220 (2004) ("Order No. 2003-A") at P 230; *see also* Order No. 2003-B, 109 FERC ¶ 61,287 (2004) at P 85.

avoid any potential negative impacts on reliability or safety.[28] While utility employees will not be performing the construction, they should be given the ability to monitor design and construction throughout the process. A large load customer should also be required to provide as-built drawings at the completion of construction.[29]

10. Studies for Existing Generation

The ANOPR proposes that for existing generation facilities seeking to enter a partial suspension to serve a new large load customer, the generator be required to undertake a system support resource ("SSR") or reliability must run ("RMR") study.[30] The ANOPR also states that: (1) the study should look out three years; (2) partial suspension can only proceed after network upgrades to ensure reliability are placed into service; and (3) any network upgrades are the responsibility of the generator. PG&E supports this proposal and notes that a similar process already exists for the CAISO. It is important that existing generators be available for or otherwise ensure reliability for all customers on the electrical grid rather than agreeing to serve a single large load customer at the expense of other customers.

11. Utility Transmission Service for Withdrawal Rights

The ANOPR proposes that utilities serving large load and hybrid facilities be responsible for transmission service based on the withdrawal capacity of the facility.[31] PG&E agrees that utilities and/or RTOs/ISOs should generally be responsible for planning and ensuring adequate capacity to provide service, including withdrawal capacity, to a new large load or hybrid facility. In California, retail load interconnection planning is performed by the utility in coordination with the CAISO. This process works well and trying to shift the responsibility to the CAISO, for example, would result in

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[28] Order No. 2003-A at P 232.

[29] Order No. 2003-A at P 237.

[30] ANOPR at P 27.

[31] ANOPR at P 28.

delays and further strain CAISO resources. The Commission should provide flexibility for RTOs/ISOs and utilities to develop processes that appropriately allocate planning responsibility, such as the current arrangement in California.

12. Ancillary Services

The ANOPR proposes that utilities serving large load and hybrid facilities be responsible for ancillary services based on peak demand, without consideration of co-located generation, and that co-located generation be compensated for ancillary services.[32] There are several issues with this proposal.

First, the Commission has already acknowledged that RTOs and ISOs have established markets to procure the ancillary services needed in their territories and thus it is unclear why this responsibility would now be placed on utilities.

Second, if utilities are required to procure ancillary services on behalf of large load and hybrid facilities, the large load and hybrid facility customer should fully compensate the utility for the ancillary service costs.

Third, co-located generation can be compensated for ancillary services if that generation is able to satisfy the ancillary service requirements. Co-located generation should not be allowed preferential treatment. If a co-located generator can satisfy the RTO/ISO and/or utility ancillary service requirements, it should be entitled to compensation similar to any other generator that provides these services.

13. Reform Implementation and Grandfathering

The ANOPR indicates that the Commission should develop a plan to implement the proposed new rule.[33] PG&E strongly agrees that a clear and transparent implementation plan is critical. If the Commission's final rules are issued in April 2026, as requested by Secretary Wright, the rules should be effective when issued. However,

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[32] ANOPR at P 29.

[33] ANOPR at P 30.

the Commission should also include an implementation period in the final rules. This will allow utilities and RTOs/ISOs to review the Commission's final rule, develop and submit tariff language if needed, and to prepare for implementation. While expediting this process is essential given the importance to the American economy and strategic interests, it is equally as important that RTOs/ISOs and utilities be given adequate time to develop the necessary processes and procedures so that implementation can occur without hiccups, ensuring the continued safe and reliable operation of the grid.

For large load customers currently being studied, PG&E strongly suggests that these studies be allowed to continue. As explained in more detail below in Section III.C, large load customers who have already started the interconnection process have done so based on existing rules and requirements—changing these rules and requirements mid-stream will be disruptive and will likely delay interconnection for these customers. PG&E recommends that any new rules adopted by the Commission only apply to large load and hybrid customers submitting interconnection applications/requests after the Commission's final rule becomes effective. Customers submitting applications/requests before that time should be able to proceed under the then-existing interconnection processes.

14. NERC Reliability Standards

Finally, the ANOPR proposed that large loads meet all applicable NERC reliability standards and Open Access Transmission Tariff ("OATT") provisions.[34] PG&E agrees with this proposal and believes that large load customers should be responsible for ongoing compliance with applicable NERC requirements and OATT provisions.

[34] ANOPR at P 31.

B. Establishing Timelines for State Action

In a number of areas, PG&E has proposed that the Commission adopt a flexible approach that can be tailored to meet state-specific needs and requirements. However, the Commission should also be clear in a final rule that, where flexibility is available, the states cannot indefinitely delay action. To the extent a state fails to act or provide clear guidance and rules by the implementation deadline, a utility should be able to submit a Section 205 filing to the Commission proposing tariff provisions for that utility that are consistent with the Commission's decision. This way, a utility is not caught in regulatory limbo if the state fails to act in a timely or prompt manner. A utility should be able to propose to the Commission utility-specific tariff provisions and requirements for large load and hybrid facility interconnections in the absence of state action in areas where the Commission gives states flexibility.

C. Grandfathering

As PG&E explained above, in its service territory there is significant activity regarding large load interconnections. Other states are experiencing similar trends related to substantial interconnection requests. Large load customers submitting these requests have relied on the existing rules and requirements in their economic decisions, in developing facility proposals and moving ahead with facility construction. The Commission should not delay or complicate these efforts by changing the rules mid-stream. Instead, PG&E recommends that large load customers that submit interconnection applications/requests prior to the effective date of the final rule be allowed to proceed under the rules and requirements in place at the time the interconnection request was submitted. Moreover, customers who are or will soon be interconnected and energized should not be subject to new rules and requirements after the fact.

IV. CONCLUSION

PG&E appreciates the leadership of Secretary Wright and the Commission and looks forward to working with the Commission and stakeholders to develop transparent, fair and equitable interconnection rules that balance the interests of large load customers and existing ratepayers.

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CERTIFICATE OF SERVICE

I hereby certify that I have on this day caused a copy of the foregoing document to be served upon all parties designated on the official service list in this proceeding in accordance with the requirements of Rule 2010 of the Commission's Rules of Practice and Procedure.

Dated at Vacaville, California, this 21st day of November, 2025.

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